

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

CHINA UNITED LINES, LTD., *Complainant*

v.

AMAZON.COM SERVICES LLC; AMAZON LOGISTICS INC.;
AND BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.,
Respondents.

DOCKET NO. 25-04

Served: July 10, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER DENYING MOTION TO STAY

On June 30, 2025, Complainant China United Lines, Ltd. (“China United”) filed a motion to stay the proceeding and a separate memorandum of law in support of its motion to stay proceeding (“Motion”). On July 7, 2025, Respondents Amazon.com Services LLC, Amazon Logistics, Inc., and Beijing Century Joyo Courier Service Co., Ltd. (collectively “Respondents”) filed their opposition to the motion (“Opposition”).

The motion seeks an indefinite stay of this proceeding while the Commission reviews an appeal of the June 6, 2025, order partially granting Respondents’ motion to dismiss, which dismissed Counts II, III, IV, and V of the amended complaint. Count I of the amended complaint remains to be adjudicated. In addition, the parties are engaged in related litigation in federal court and with the Shanghai International Arbitration Center. Joint Status Report at 1-2.

China United asserts that “it would be an inefficient use of the Parties’ time and the Commission’s judicial resources to move forward with discovery while the Appeal is pending,” arguing that “the judge to whom that proceeding is assigned must balance the court’s interest in judicial economy and any possible hardship to the parties.” Motion at 2 (citing *United States SEC v. Deloitte Touche Tohmatsu CPA Ltd.*, 928 F. Supp. 2d 43, 50 (D.D.C. 2013)). China United argues that while “the discovery issues for the five counts overlap to some extent, the issues on discovery for the four dismissed counts are materially different from those for Count I,” if the Commission reverses, the parties will be required to undertake discovery twice, leading to duplication of efforts and resources; and any delay “will not prejudice or harm either party.” Motion at 3.

Respondents rely on Commission Rules and cases to argue that the motion to stay should be denied, contending that Commission Rule 221(d) states that an appeal will not operate as a stay of the proceeding; China United has not demonstrated a substantial likelihood of success on appeal; China United has not demonstrated the need for the stay; and discovery is ongoing in two other cases. Moreover, Respondents contend that they have “an interest in moving forward promptly to address these baseless allegations.” Opposition at 4.

Commission Rule 224(b) addresses appeals of orders of dismissals, stating: “If an administrative law judge has granted a motion for dismissal of the proceeding in whole or in part, any party desiring to appeal must file such appeal no later than twenty-two (22) days after service of the ruling on the motion in question.” 46 C.F.R. § 224(b). Commission Rule 221, cited by Respondents, applies to an appeal “from ruling of presiding officer other than orders of dismissal in whole or in part” and states that: “Unless otherwise provided, the certification of the appeal will not operate as a stay of the proceeding before the presiding officer.” 46 C.F.R. § 221(d). It is not clear that Rule 221(b) applies to appeals of dismissal by right under Rule 224(b).

The “power to stay ‘is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” *Baltic Auto Shipping, Inc. v. Michael Hitrinov*, Docket No. 14-16, 2017 WL 4924883, at *5 (FMC Oct. 25, 2017) (quoting *Landis v. N. Am. Co.*, 299 U.S. 248, 254 (1936)).

Both the Commission and the D.C. Circuit have relied on the four factors identified in *Virginia Petroleum Jobbers Ass’n v. FPC* in evaluating requests to stay proceedings due to an appeal.

The factors to be considered in determining whether a stay is warranted are: (1) the likelihood that the party seeking the stay will prevail on the merits of the appeal; (2) the likelihood that the moving party will be irreparably harmed absent a stay; (3) the prospect that others will be harmed if the court grants the stay; and (4) the public interest in granting the stay.

Wisconsin Gas Co. v. FERC, 758 F.2d 669, 673-674 (D.C. Cir. 1985) (citing *Virginia Petroleum Jobbers Ass’n v. FPC*, 259 F.2d 921, 925 (D.C. Cir. 1958)). The consideration of the factors on a motion for stay is left to the sound discretion of the administrative law judge. *Permian Basin Area Rate Cases*, 390 U.S. 747, 773 (1968); *Landis v. North American Co.*, 299 U.S. 248, 254 (1936); *Washington Metropolitan Area Transit Comm’n v. Holiday Tours, Inc.*, 559 F.2d 841, 844-845 (D.C. Cir. 1977). The “party seeking a stay has the burden to demonstrate the need for the stay.” *General Motors LLC v. Nippon Yusen Kabushiki Kaisha*, Docket No. 15-08, 2016 WL 240785, at *2 (ALJ Jan. 5, 2016).

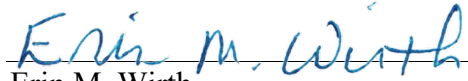
For example, In *Puerto Rico Ports Authority v. FMC*, the D.C. Circuit stayed a case pending before the Federal Maritime Commission while the D.C. Circuit reviewed the Commission’s interlocutory decision finding that PRPA was not entitled to immunity as an arm of the Commonwealth of Puerto Rico. *Puerto Rico Ports Authority v. FMC*, 2007 U.S. App. LEXIS 4166, at *2 (D.C. Cir. Feb. 22, 2007) (per curiam). The D.C. Circuit indicated that PRPA had “satisfied the stringent standards required for a stay pending court review.” *Puerto Rico Ports Authority v. FMC*, 2007 U.S. App. LEXIS 4166 at *2 (citing *Washington Metropolitan Area Transit Comm’n v. Holiday Tours, Inc.*, 559 F.2d 841, 844-845 (D.C. Cir. 1977)).

In other cases, however, stays have been denied. See, e.g., *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited*, Docket No. 24-17, 2025 WL 1706544, at *3 (ALJ June 11, 2025); *Verterra Ltd. v. D.B. Group America Ltd.*, Docket No. 19-09, 2020 WL 1150930, at *5 (ALJ March 5, 2020).

China United does not address the *Jobbers* factors. However, even under the standard proposed by China United, balancing the court's interest in judicial economy with any possible hardship to the parties, China United has not established that it will face hardship from proceeding here, particularly as litigation between the parties is ongoing in two other jurisdictions.

Moreover, the motion to dismiss relied on Commission Rules and precedent and there is no reason to anticipate that China United will prevail on the merits of their appeal. If China United is successful, then the parties may identify any additional discovery that needs to be completed. Thus, there is no irreparable injury. Similarly, moving forward would not harm other parties and may assist as the parties attempt to resolve the related proceedings. Finally, it is in the public interest to move forward toward a resolution on the merits. Thus, the *Jobbers* factors do not weigh toward approving the requested stay.

Accordingly, it is hereby **ORDERED** that China United's motion to stay be **DENIED**.


Erin M. Wirth
Chief Administrative Law Judge